

SENATE CHAMBER

STATE OF OKLAHOMA

DISPOSITION

☒ FLOOR AMENDMENT

No. 1

☐ COMMITTEE AMENDMENT

(Date)

I move to amend House Bill No. 4298 by substituting the attached floor substitute (Request #4005) for the title, enacting clause and entire body of the measure.

Submitted by

Senator Rosino

I hereby grant permission for the floor substitute to be adopted.

Senator Rosino, Chair (required)

Senator McIntosh

Senator Stanley

Senator Nice

Senator Coleman

Senator Pugh

Senator Dossett

Senator Reinhardt

Senator Haste

Senator Standridge

Senator Hicks

Senator Thompson

Senator Paxton, President Pro Tempore

Senator Daniels, Majority Floor Leader

Note: Health and Human Services Committee majority requires seven (7) members' signatures.

Rosino-DC-FS-HB4298

4/28/2026 11:15 AM

(Floor Amendments Only)

Date and Time Filed: 4-28-26

12:55 PM M/R

☐ Untimely

☐ Amendment Cycle Extended

☐ Secondary Amendment

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

FLOOR SUBSTITUTE
FOR ENGROSSED

HOUSE BILL NO. 4298

By: Schreiber and Pae of the
House

and

Rosino and Reinhardt of the
Senate

FLOOR SUBSTITUTE

An Act relating to child care; amending 10 O.S. 2021,
Section 405.4, which relates to master teachers;
directing establishment of certain master teacher
ratios; authorizing child care facilities to charge
certain fees subject to specified conditions;
requiring the Department of Human Services to seek
certain federal approval; providing for codification;
providing an effective date; and declaring an
emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 10 O.S. 2021, Section 405.4, is
amended to read as follows:

Section 405.4. A. Any person with a bachelor's degree or
postgraduate degree shall be considered as having met the
educational requirements for a director of a full-time child care
center required by the Department of Human Services. Nothing in
this section shall be construed as to affect annual continuing

1 education requirements. The director of a child care center may
2 also qualify as a master teacher for children of all ages.

3 B. Any person replacing a master teacher at a child care center
4 shall be granted a one-year probationary period to fulfill the
5 educational qualifications required by the Department for a master
6 teacher. The Department may extend the probationary period an
7 additional year as long as the person is actively pursuing that
8 goal.

9 C. Not later than the effective date of this act, the Director
10 of Human Services shall establish master teacher ratios for two-,
11 three-, four-, and five-star child care facilities that are the most
12 permissive ratios possible without harming the safety of children or
13 the quality of care provided, as determined by the Director.

14 D. Licensed child care facilities opened or expanded before
15 November 1, 2016, shall have thirty-five (35) square feet of floor
16 area per infant in rooms occupied only by infants. New construction
17 and existing space not previously licensed for child care after
18 November 1, 2016, shall have forty (40) square feet of floor area
19 per infant in rooms occupied only by infants.

20 SECTION 2. NEW LAW A new section of law to be codified
21 in the Oklahoma Statutes as Section 410.2 of Title 10, unless there
22 is created a duplication in numbering, reads as follows:

23 A. Subject to federal approval as described in subsection B of
24 this section, a licensed child care facility that participates in

1 the child care subsidy program may charge a family receiving subsidy
2 assistance an additional differential fee above the subsidy
3 reimbursement rate established by the Department of Human Services,
4 provided the total amount paid by the family, including the required
5 copayment and any additional charges from the facility, does not
6 exceed ten percent (10%) of household income. The Department shall
7 not be responsible for payment of any amount charged above the
8 applicable subsidy reimbursement rate.

9 B. The Department shall seek any approval necessary from the
10 federal Administration for Children and Families to implement the
11 provisions of this section.

12 SECTION 3. This act shall become effective July 1, 2026.

13 SECTION 4. It being immediately necessary for the preservation
14 of the public peace, health or safety, an emergency is hereby
15 declared to exist, by reason whereof this act shall take effect and
16 be in full force from and after its passage and approval.

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18 60-2-4005 DC 4/28/2026 1:18:13 PM
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